Jersey

# STATES OF JERSEY (TRANSFER OF FINANCIAL SERVICES FUNCTIONS – EXTERNAL RELATIONS TO CHIEF MINISTER) ORDER 2023

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Jersey

# STATES OF JERSEY (TRANSFER OF FINANCIAL SERVICES FUNCTIONS – EXTERNAL RELATIONS TO CHIEF MINISTER) ORDER 2023

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|---|---|
| *Made* | *5th April 2023* |
| *Coming into force* | *12th April 2023* |

**THE CHIEF MINISTER** makes this Order under Article 29A of the States of Jersey Law 2005 –

## 1 Minister for External Relations and Financial Services renamed as Minister for External Relations

(1) The Minister for External Relations and Financial Services is renamed as the Minister for External Relations.

(2) Accordingly, in Article 1 of the States of Jersey (Ministerial Offices) Order 2022 for "Minister for External Relations and Financial Services" there is substituted "Minister for External Relations".

(3) Schedule 1 makes further amendments that are consequential on, or incidental or supplementary to, that renaming.

## 2 Amendments to transfer financial services functions to Chief Minister

Schedule 2 makes amendments to transfer financial services functions to the Chief Minister.

## 3 Citation and commencement

This Order may be cited as the States of Jersey (Transfer of Financial Services Functions – External Relations to Chief Minister) Order 2023 and comes into force 7 days after it is made.

**DEPUTY K.L. MOORE OF ST. MARY, ST. OUEN AND ST. PETER**

*Chief Minister*

# SCHEDULE 1

(Article 1(3))

## CONSEQUENTIAL, INCIDENTAL AND SUPPLEMENTARY AMENDMENTS ON RENAMING AS MINISTER FOR EXTERNAL RELATIONS

### 1 Substitution of names

In each provision in the following table for "Minister for External Relations and Financial Services" there is substituted "Minister for External Relations" –

| **Legislative instrument** | **Provision** (references are to Article or Regulation, as appropriate, where a number is given without more) |
|---|---|
| Air Navigation (Jersey) Law 2014 | 1(1) definition "Minister" |
| Civil Aviation (Jersey) Law 2008 | 1(1) definition "Minister" |
| Civil Aviation (Amendment) (Jersey) Law 2021 (enacted but relevant provision not yet in force) | 5(2) |
| Crime and Security (Jersey) Law 2003 | 1(1) definition "Minister" |
| Emergency Powers and Planning (Designation of Competent Authorities) (Jersey) Act 2019 | 4 |
| EU Legislation (Customs Union, Import and Export Control) (Jersey) Regulations 2018 | 2(6), sub-paragraph (b) of the definition "appropriate Minister" |
| European Union Legislation (Implementation) (Jersey) Law 2014 | 1(1) definition "Minister" |
| Hong Kong Economic and Trade Office (Privileges and Immunities) (Jersey) Law 1998 | paragraphs 5 and 6 of Schedule |
| Intellectual Property (Unregistered Rights) (Jersey) Law 2011 | 1(1) definition "the Minister" |
| Money Laundering and Weapons Development (Directions) (Jersey) Law 2012 | 1 definition "Minister" |
| Nuclear Safeguards (Notification) (Jersey) Order 2005 | 1(1) definition "Minister" |
| Patents (Jersey) Law 1957 | 1(1) definition "Minister" |
| Registered Designs (Jersey) Law 1957 | 1(1) definition "Minister" |
| Sanctions and Asset-Freezing (Jersey) Law 2019 | 1(1) definition "Minister" |
| States of Jersey (Ministerial Offices) Order 2022 | paragraphs 1(b), 3 and 5 of Schedule 1 |
| Taxation (Double Taxation) (Jersey) Regulations 2010 | 3 |

| | |
|---|---|
| Taxation (Exchange of Information with Third Countries) (Jersey) Regulations 2008 | 16A(3) |
| Taxation (Implementation) (International Tax Compliance) (Common Reporting Standard) (Jersey) Regulations 2015 | 1(1) definition "Minister" |
| Taxation (Implementation) (International Tax Compliance) (United Kingdom) (Jersey) Regulations 2014 | 1(1) definition "Minister" |
| Taxation (Implementation) (International Tax Compliance) (United States of America) (Jersey) Regulations 2014 | 1(1) definition "Minister" |
| Trade Marks (Jersey) Law 2000 | 1(1) definition "Minister". |

## 2 States of Jersey Law 2005 and States of Jersey (Minister for External Relations and Financial Services) (Jersey) Regulations 2013 amended

In relation to the renaming of the Minister for External Relations and Financial Services as the Minister for External Relations –

(a) in Article 18(3)(b) of the States of Jersey Law 2005 for "conducting external relations in accordance" there is substituted "conducting external relations, concurrently with the Minister for External Relations, in accordance";

(b) the States of Jersey (Minister for External Relations and Financial Services) (Jersey) Regulations 2013 are repealed; and

(c) Article 3 of the States of Jersey (Ministerial Offices) Order 2022 is deleted.

# SCHEDULE 2

(Article 2)

## TRANSFER OF FINANCIAL SERVICES FUNCTIONS TO CHIEF MINISTER

### 1 Transfer of functions from Minister for External Relations to Chief Minister

(1) In Article 1(1) of the Foundations (Jersey) Law 2009 after the definition "functions" there is inserted –

" "Minister" means the Chief Minister;".

(2) In Article 1(1) of the Limited Liability Companies (Jersey) Law 2018, in the definition "Minister", for "Minister for External Relations" there is substituted "Chief Minister".

(3) In Article 2(2) and (3) of the Proceeds of Crime and Terrorism (Miscellaneous Provisions) (Jersey) Law 2014 for "Minister" there is substituted "Chief Minister".

(4) In each provision in the following table, for "Minister for External Relations and Financial Services" there is substituted "Chief Minister" –

| **Legislative instrument** | **Provision** (references are to Article or Regulation, as appropriate, where a number is given without more) |
|---|---|
| Alternative Investment Funds (Jersey) Regulations 2012 | 2 definition "Minister" |
| Bank (Recovery and Resolution) (Jersey) Law 2017 | 1 definition "Minister" |
| Banking Business (Jersey) Law 1991 | 1 definition "Minister" |
| Bankruptcy (Désastre) (Jersey) Law 1990 | 1(1) definition "Minister" |
| Charities (Jersey) Law 2014 | 1 definition "Minister" |
| Collective Investment Funds (Jersey) Law 1988 | 1(1) definition "Minister" |
| Companies (Jersey) Law 1991 | 1(1) definition "Minister" |
| Companies (Takeovers and Mergers Panel) (Jersey) Law 2009 | 1(1) definition "Minister" |
| Control of Borrowing (Jersey) Law 1947 | 1(1) definition "Minister" |
| Dormant Bank Accounts (Jersey) Law 2017 | 1(1) definition "Minister" |
| EU Legislation (Payment Services – SEPA) (Jersey) Regulations 2015 | 1(1) definition "Minister" |
| Financial Services (Disclosure and Provision of Information) (Jersey) Law 2020 | 1 definition "Minister" |
| Financial Services (Jersey) Law 1998 | 1(1) definition "Minister" |
| Financial Services Commission (Jersey) Law 1998 | 1(1) definition "Minister" |
| Forfeiture of Assets (Civil Proceedings) (Jersey) Law 2018 | 1(1) definition "Minister" |

| | |
|---|---|
| Incorporated Limited Partnerships (Jersey) Law 2011 | 1 definition "Minister" |
| Insurance Business (Jersey) Law 1996 | 1(1) definition "Minister" |
| Limited Liability Partnerships (Jersey) Law 2017 | 1(1) definition "Minister" |
| Limited Partnerships (Continuance) (Jersey) Regulations 2020 | 1 definition "Minister" |
| Limited Partnerships (Jersey) Law 1994 | 1 definition "Minister" |
| Non-Profit Organizations (Jersey) Law 2008 | 3(1) definition "Minister" |
| Proceeds of Crime (Jersey) Law 1999 | 1(1) definition "criminal conduct",<br>36(7), 37(1), 43(1) |
| Proceeds of Crime (Supervisory Bodies) (Jersey) Law 2008 | 1(1) definition "Minister" |
| Registration of Business Names (Jersey) Law 1956 | 1(1) definition "Minister" |
| Security Interests (Jersey) Law 2012 | 1 definition "Minister" |
| Separate Limited Partnerships (Jersey) Law 2011 | 1 definition "Minister". |

## 2 Consequential deletion of redundant references to Chief Minister

In each provision in the following table, "Chief" is deleted –

| **Legislative instrument** | **Provision**<br>(references are to Article or Regulation, as appropriate, where a number is given without more) |
|---|---|
| Bankruptcy (Désastre) (Jersey) Law 1990 | 48(2)(b) in each place it occurs |
| Financial Services Commission (Jersey) Law 1998 | Paragraph 7(2) of Schedule 2 |
| Foundations (Continuance) (Jersey) Regulations 2009 | Article 2(1) |
| Foundations (Mergers) (Jersey) Regulations 2009 | Article 2 |